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Second, as time goes by, the purposes associated with an established monument, symbol, or practice often multiply. Take the example of Ten Commandments monuments, the subject we addressed in *Van Orden*, 545 U. S. 677, and *McCreary County v. American Civil Liberties Union of Ky.*, 545 U. S. 844 (2005). For believing Jews and Christians, the Ten Commandments are the word of God handed down to Moses on Mount Sinai, but the image of the Ten Commandments has also been used to convey other meanings. They have historical significance as one of the foundations of our legal system, and for largely that reason, they are depicted in the marble frieze in our courtroom and in other prominent public buildings in our Nation’s capital. See *Van Orden*, *supra*, at 688–690. In *Van Orden* and *McCreary*, no Member of the Court thought that these depictions are unconstitutional. 545 U. S., at 688–690; *id.*, at 701 (opinion of BREYER, J.); *id.*, at 740 (Souter, J., dissenting).

Just as depictions of the Ten Commandments in these public buildings were intended to serve secular purposes, the litigation in *Van Orden* and *McCreary* showed that secular motivations played a part in the proliferation of Ten Commandments monuments in the 1950s. In 1946, Minnesota Judge E. J. Ruegemer proposed that the Ten Commandments be widely disseminated as a way of combating juvenile delinquency.¹⁷ With this prompting, the Fraternal Order of the Eagles began distributing paper copies of the Ten Commandments to churches, school groups, courts, and government offices. The Eagles, “while interested in the religious aspect of the Ten Commandments, sought to highlight the Commandments’ role in shaping civic morality.” *Van Orden*, *supra*, at 701 (opinion of BREYER, J.). At the same time, Cecil B. DeMille was filming *The Ten Command-*

¹⁷ See Bravin, When Moses’ Laws Run Afoul of the U. S.’s, Get Me Cecil B. deMille—Ten Commandment Memorial Has Novel Defense in Suit, *Wall Street Journal*, Apr. 18, 2001, p. A1.

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ments.¹⁸ He learned of Judge Ruegemer's campaign, and the two collaborated, deciding that the Commandments should be carved on stone tablets and that DeMille would make arrangements with the Eagles to help pay for them, thus simultaneously promoting his film and public awareness of the Decalogue. Not only did DeMille and Judge Ruegemer have different purposes, but the motivations of those who accepted the monuments and those responsible for maintaining them may also have differed. As we noted in *Pleasant Grove City v. Summum*, 555 U.S. 460, 476 (2009), "the thoughts or sentiments expressed by a government entity that accepts and displays [a monument] may be quite different from those of either its creator or its donor."

The existence of multiple purposes is not exclusive to long-standing monuments, symbols, or practices, but this phenomenon is more likely to occur in such cases. Even if the original purpose of a monument was infused with religion, the passage of time may obscure that sentiment. As our society becomes more and more religiously diverse, a community may preserve such monuments, symbols, and practices for the sake of their historical significance or their place in a common cultural heritage. Cf. *Schempp*, 374 U.S., at 264–265 (Brennan, J., concurring) ("[The] government may originally have decreed a Sunday day of rest for the impermissible purpose of supporting religion but abandoned that purpose and retained the laws for the permissible purpose of furthering overwhelmingly secular ends").

Third, just as the purpose for maintaining a monument, symbol, or practice may evolve, "[t]he 'message' conveyed . . . may change over time." *Summum*, 555 U.S., at 477. Consider, for example, the message of the Statue of Liberty, which began as a monument to the solidarity and friendship between France and the United States and only decades

¹⁸ See D. Davis, *The Oxford Handbook of Church and State in the United States* 284 (2010).

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later came to be seen “as a beacon welcoming immigrants to a land of freedom.” *Ibid.*

With sufficient time, religiously expressive monuments, symbols, and practices can become embedded features of a community’s landscape and identity. The community may come to value them without necessarily embracing their religious roots. The recent tragic fire at Notre Dame in Paris provides a striking example. Although the French Republic rigorously enforces a secular public square,¹⁹ the cathedral remains a symbol of national importance to the religious and nonreligious alike. Notre Dame is fundamentally a place of worship and retains great religious importance, but its meaning has broadened. For many, it is inextricably linked with the very idea of Paris and France.²⁰ Speaking to the nation shortly after the fire, President Macron said that Notre Dame “is our history, our literature, our imagination. The place where we survived epidemics, wars, liberation. It has been the epicenter of our lives.”²¹

In the same way, consider the many cities and towns across the United States that bear religious names. Religion undoubtedly motivated those who named Bethlehem, Pennsylvania; Las Cruces, New Mexico; Providence, Rhode Island; Corpus Christi, Texas; Nephi, Utah, and the countless other places in our country with names that are rooted in religion. Yet few would argue that this history requires that these names be erased from the map. Or take a motto like Arizona’s, “*Ditat Deus*” (“God enriches”), which was adopted in 1864,²² or a flag like Maryland’s, which has included two

¹⁹ See French Const., Art. 1 (proclaiming that France is a “secular . . . Republic”).

²⁰ See Erlanger, What the Notre-Dame Fire Reveals About the Soul of France, N. Y. Times, Apr. 16, 2019.

²¹ Hinnant, Petrequin, & Ganley, Fire Ravages Soaring Notre Dame Cathedral, Paris Left Aghast, AP News, Apr. 16, 2019.

²² See B. Shearer & B. Shearer, State Names, Seals, Flags, and Symbols: A Historical Guide 17–18 (3d ed. 2002). See also *id.*, at 18 (Connecticut motto: “*Qui Tanstulit Sustinet*” (“He Who Transplanted Still Sustains”),

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crosses since 1904.²³ Familiarity itself can become a reason for preservation.

Fourth, when time's passage imbues a religiously expressive monument, symbol, or practice with this kind of familiarity and historical significance, removing it may no longer appear neutral, especially to the local community for which it has taken on particular meaning. A government that roams the land, tearing down monuments with religious symbolism and scrubbing away any reference to the divine will strike many as aggressively hostile to religion. Militantly secular regimes have carried out such projects in the past,²⁴ and for those with a knowledge of history, the image of monuments being taken down will be evocative, disturbing, and divisive. Cf. *Van Orden*, 545 U. S., at 704 (opinion of BREYER, J.) (“[D]isputes concerning the removal of long-standing depictions of the Ten Commandments from public buildings across the Nation . . . could thereby create the very

dating back to the colonial era and adapted from the Book of Psalms 79:3); *ibid.* (Florida motto: “In God We Trust,” adopted in 1868); *id.*, at 20 (Maryland motto: “*Scuto Bonae Volantatis Tuae Coronasti Nos*” (“With Favor Wilt Thou Compass Us as with a Shield”), which appeared on the seal adopted in 1876 and comes from Psalms 5:12); *id.*, at 21–22 (Ohio motto: “With God, All Things Are Possible,” adopted in 1959 and taken from Matthew 19:26); *id.*, at 22 (South Dakota motto: “Under God the People Rule,” adopted in 1885); *id.*, at 23 (American Samoa motto: “*Samoa—Muamua le Atua*” (“Samoa—Let God Be First”), adopted in 1975).

²³ The current flag was known and used since at least October 1880, and was officially adopted by the General Assembly in 1904. See History of the Maryland Flag, <https://sos.maryland.gov/Pages/Services/Flag-History.aspx>.

²⁴ For example, the French Revolution sought to “dechristianize” the nation and thus removed “plate[s], statues and other fittings from places of worship,” destroyed “crosses, bells, shrines and other ‘external signs of worship,’” and altered “personal and place names which had any ecclesiastical connotations to more suitably Revolutionary ones.” Tallett, *Dechristianizing France: The Year II and the Revolutionary Experience*, in *Religion, Society and Politics in France Since 1789*, pp. 1–2 (F. Tallett & N. Atkin eds. 1991).

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kind of religiously based divisiveness that the Establishment Clause seeks to avoid”).

These four considerations show that retaining established, religiously expressive monuments, symbols, and practices is quite different from erecting or adopting new ones. The passage of time gives rise to a strong presumption of constitutionality.

C

The role of the cross in World War I memorials is illustrative of each of the four preceding considerations. Immediately following the war, “[c]ommunities across America built memorials to commemorate those who had served the nation in the struggle to make the world safe for democracy.” G. Piehler, *The American Memory of War*, App. 1124. Although not all of these communities included a cross in their memorials, the cross had become a symbol closely linked to the war. “[T]he First World War witnessed a dramatic change in . . . the symbols used to commemorate th[e] service” of the fallen soldiers. *Id.*, at 1123. In the wake of the war, the United States adopted the cross as part of its military honors, establishing the Distinguished Service Cross and the Navy Cross in 1918 and 1919, respectively. See *id.*, at 147–148. And as already noted, the fallen soldiers’ final resting places abroad were marked by white crosses or Stars of David. The solemn image of endless rows of white crosses became inextricably linked with and symbolic of the ultimate price paid by 116,000 soldiers. And this relationship between the cross and the war undoubtedly influenced the design of the many war memorials that sprang up across the Nation.

This is not to say that the cross’s association with the war was the sole or dominant motivation for the inclusion of the symbol in every World War I memorial that features it. But today, it is all but impossible to tell whether that was so. The passage of time means that testimony from those actually involved in the decisionmaking process is generally un-

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available, and attempting to uncover their motivations invites rampant speculation. And no matter what the original purposes for the erection of a monument, a community may wish to preserve it for very different reasons, such as the historic preservation and traffic-safety concerns the Commission has pressed here.

In addition, the passage of time may have altered the area surrounding a monument in ways that change its meaning and provide new reasons for its preservation. Such changes are relevant here, since the Bladensburg Cross now sits at a busy traffic intersection, and numerous additional monuments are located nearby.

Even the AHA recognizes that there are instances in which a war memorial in the form of a cross is unobjectionable. The AHA is not offended by the sight of the Argonne Cross or the Canadian Cross of Sacrifice, both Latin crosses commemorating World War I that rest on public grounds in Arlington National Cemetery. The difference, according to the AHA, is that their location in a cemetery gives them a closer association with individual gravestones and interred soldiers. See Brief for Respondents 96; Tr. of Oral Arg. 52.

But a memorial's placement in a cemetery is not necessary to create such a connection. The parents and other relatives of many of the war dead lacked the means to travel to Europe to visit their graves, and the bodies of approximately 4,400 American soldiers were either never found or never identified.²⁵ Thus, for many grieving relatives and friends, memorials took the place of gravestones. Recall that the mother of one of the young men memorialized by the Bladensburg Cross thought of the memorial as, "in a way, his grave stone." App. 1244. Whether in a cemetery or a city park, a World War I cross remains a memorial to the fallen.

Similar reasoning applies to other memorials and monuments honoring important figures in our Nation's history.

²⁵ See App. 141, 936; M. Sledge, *Soldier Dead* 67 (2005).

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When faith was important to the person whose life is commemorated, it is natural to include a symbolic reference to faith in the design of the memorial. For example, many memorials for Dr. Martin Luther King, Jr., make reference to his faith. Take the Martin Luther King, Jr. Civil Rights Memorial Park in Seattle, which contains a sculpture in three segments representing “both the Christian Trinity and the union of the family.”²⁶ In Atlanta, the Ebenezer Baptist Church sits on the grounds of the Martin Luther King, Jr. National Historical Park. National Statuary Hall in the Capitol honors a variety of religious figures: for example, Mother Joseph Pariseau kneeling in prayer; Po’Pay, a Pueblo religious leader with symbols of the Pueblo religion; Brigham Young, president of the Church of Jesus Christ of Latter-day Saints; and Father Eusebio Kino with a crucifix around his neck and his hand raised in blessing.²⁷ These monuments honor men and women who have played an important role in the history of our country, and where religious symbols are included in the monuments, their presence acknowledges the centrality of faith to those whose lives are commemorated.

Finally, as World War I monuments have endured through the years and become a familiar part of the physical and cultural landscape, requiring their removal would not be viewed by many as a neutral act. And an alteration like the one entertained by the Fourth Circuit—amputating the arms of the Cross, see 874 F. 3d, at 202, n. 7—would be seen by many as profoundly disrespectful. One member of the majority below viewed this objection as inconsistent with the claim that the Bladensburg Cross serves secular purposes, see 891 F. 3d, at 121 (Wynn, J., concurring in denial of en banc), but this argument misunderstands the complexity of monuments.

²⁶ Local Memorials Honoring Dr. King, <https://www.kingcounty.gov/elected/executive/equity-social-justice/mlk/local-memorials.aspx>.

²⁷ The National Statuary Hall Collection, <https://www.aoc.gov/the-national-statuary-hall-collection>.

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A monument may express many purposes and convey many different messages, both secular and religious. Cf. *Van Orden*, 545 U. S., at 690 (plurality opinion) (describing simultaneous religious and secular meaning of the Ten Commandments display). Thus, a campaign to obliterate items with religious associations may evidence hostility to religion even if those religious associations are no longer in the forefront.

For example, few would say that the State of California is attempting to convey a religious message by retaining the names given to many of the State's cities by their original Spanish settlers—San Diego, Los Angeles, Santa Barbara, San Jose, San Francisco, etc. But it would be something else entirely if the State undertook to change all those names. Much the same is true about monuments to soldiers who sacrificed their lives for this country more than a century ago.

D

While the *Lemon* Court ambitiously attempted to find a grand unified theory of the Establishment Clause, in later cases, we have taken a more modest approach that focuses on the particular issue at hand and looks to history for guidance. Our cases involving prayer before a legislative session are an example.

In *Marsh v. Chambers*, 463 U. S. 783 (1983), the Court upheld the Nebraska Legislature's practice of beginning each session with a prayer by an official chaplain, and in so holding, the Court conspicuously ignored *Lemon* and did not respond to Justice Brennan's argument in dissent that the legislature's practice could not satisfy the *Lemon* test. 463 U. S., at 797–801. Instead, the Court found it highly persuasive that Congress for more than 200 years had opened its sessions with a prayer and that many state legislatures had followed suit. *Id.*, at 787–788. We took a similar approach more recently in *Town of Greece*, 572 U. S., at 577.

We reached these results even though it was clear, as stressed by the *Marsh* dissent, that prayer is by definition

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religious. See *Marsh*, *supra*, at 797–798 (opinion of Brennan, J.). As the Court put it in *Town of Greece*: “*Marsh* must not be understood as permitting a practice that would amount to a constitutional violation if not for its historical foundation.” 572 U.S., at 576. “The case teaches instead that the Establishment Clause must be interpreted ‘by reference to historical practices and understandings’” and that the decision of the First Congress to “provid[e] for the appointment of chaplains only days after approving language for the First Amendment demonstrates that the Framers considered legislative prayer a benign acknowledgment of religion’s role in society.” *Ibid.*

The prevalence of this philosophy at the time of the founding is reflected in other prominent actions taken by the First Congress. It requested—and President Washington proclaimed—a national day of prayer, see 1 J. Richardson, *Messages and Papers of the Presidents, 1789–1897*, p. 64 (1897) (President Washington’s Thanksgiving Proclamation), and it reenacted the Northwest Territory Ordinance, which provided that “[r]eligion, morality, and knowledge, being necessary to good government and the happiness of mankind, schools and the means of education shall forever be encouraged,” 1 Stat. 52, n. (a). President Washington echoed this sentiment in his Farewell Address, calling religion and morality “indispensable supports” to “political prosperity.” Farewell Address (1796), in 35 *The Writings of George Washington* 229 (J. Fitzpatrick ed. 1940). See also P. Hamburger, *Separation of Church and State* 66 (2002). The First Congress looked to these “supports” when it chose to begin its sessions with a prayer. This practice was designed to solemnize congressional meetings, unifying those in attendance as they pursued a common goal of good governance.

To achieve that purpose, legislative prayer needed to be inclusive rather than divisive, and that required a determined effort even in a society that was much more religiously homogeneous than ours today. Although the United

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States at the time was overwhelmingly Christian and Protestant,²⁸ there was considerable friction between Protestant denominations. See M. Noll, *America's God: From Jonathan Edwards to Abraham Lincoln* 228 (2002). Thus, when an Episcopal clergyman was nominated as chaplain, some Congregationalist Members of Congress objected due to the “‘diversity of religious sentiments represented in Congress.’” D. Davis, *Religion and the Continental Congress* 74 (2000). Nevertheless, Samuel Adams, a staunch Congregationalist, spoke in favor of the motion: “‘I am no bigot. I can hear a prayer from a man of piety and virtue, who is at the same time a friend of his country.’” *Ibid.* Others agreed and the chaplain was appointed.

Over time, the members of the clergy invited to offer prayers at the opening of a session grew more and more diverse. For example, an 1856 study of Senate and House Chaplains since 1789 tallied 22 Methodists, 20 Presbyterians, 19 Episcopalians, 13 Baptists, 4 Congregationalists, 2 Roman Catholics, and 3 that were characterized as “miscellaneous.”²⁹ Four years later, Rabbi Morris Raphall became the first rabbi to open Congress.³⁰ Since then, Congress has welcomed guest chaplains from a variety of faiths, including Islam, Hinduism, Buddhism, and Native American religions.³¹

In *Town of Greece*, which concerned prayer before a town council meeting, there was disagreement about the inclusiveness of the town's practice. Compare 572 U. S., at 585 (opinion of the Court) (“The town made reasonable efforts to identify all of the congregations located within its borders and

²⁸ W. Hutchison, *Religious Pluralism in America* 20–21 (2003).

²⁹ A. Stokes, 3 *Church and State in the United States* 130 (1950).

³⁰ Korn, *Rabbis, Prayers, and Legislatures*, 23 *Hebrew Union College Ann.*, pt. 2, pp. 95, 96 (1950).

³¹ See Lund, *The Congressional Chaplaincies*, 17 *Wm. & Mary Bill of Rights J.* 1171, 1204–1205 (2009). See also 160 *Cong. Rec.* 3853 (2014) (prayer by the Dalai Lama).

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represented that it would welcome a prayer by any minister or layman who wished to give one”), with *id.*, at 616 (KAGAN, J., dissenting) (“Greece’s Board did nothing to recognize religious diversity”). But there was no disagreement that the Establishment Clause permits a nondiscriminatory practice of prayer at the beginning of a town council session. See *ibid.* (“I believe that pluralism and inclusion [in legislative prayer] in a town hall can satisfy the constitutional requirement of neutrality”). Of course, the specific practice challenged in *Town of Greece* lacked the very direct connection, via the First Congress, to the thinking of those who were responsible for framing the First Amendment. But what mattered was that the town’s practice “fi[t] within the tradition long followed in Congress and the state legislatures.” *Id.*, at 577 (opinion of the Court).

The practice begun by the First Congress stands out as an example of respect and tolerance for differing views, an honest endeavor to achieve inclusivity and nondiscrimination, and a recognition of the important role that religion plays in the lives of many Americans. Where categories of monuments, symbols, and practices with a longstanding history follow in that tradition, they are likewise constitutional.

III

Applying these principles, we conclude that the Bladensburg Cross does not violate the Establishment Clause.

As we have explained, the Bladensburg Cross carries special significance in commemorating World War I. Due in large part to the image of the simple wooden crosses that originally marked the graves of American soldiers killed in the war, the cross became a symbol of their sacrifice, and the design of the Bladensburg Cross must be understood in light of that background. That the cross originated as a Christian symbol and retains that meaning in many contexts does not change the fact that the symbol took on an added secular meaning when used in World War I memorials.

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Not only did the Bladensburg Cross begin with this meaning, but with the passage of time, it has acquired historical importance. It reminds the people of Bladensburg and surrounding areas of the deeds of their predecessors and of the sacrifices they made in a war fought in the name of democracy. As long as it is retained in its original place and form, it speaks as well of the community that erected the monument nearly a century ago and has maintained it ever since. The memorial represents what the relatives, friends, and neighbors of the fallen soldiers felt at the time and how they chose to express their sentiments. And the monument has acquired additional layers of historical meaning in subsequent years. The Cross now stands among memorials to veterans of later wars. It has become part of the community.

The monument would not serve that role if its design had deliberately disrespected area soldiers who perished in World War I. More than 3,500 Jewish soldiers gave their lives for the United States in that conflict,³² and some have wondered whether the names of any Jewish soldiers from the area were deliberately left off the list on the memorial or whether the names of any Jewish soldiers were included on the Cross against the wishes of their families. There is no evidence that either thing was done, and we do know that one of the local American Legion leaders responsible for the Cross's construction was a Jewish veteran. See App. 65, 205, 990.

The AHA's brief strains to connect the Bladensburg Cross and even the American Legion with anti-Semitism and the Ku Klux Klan, see Brief for Respondents 5–7, but the AHA's disparaging intimations have no evidentiary support. And when the events surrounding the erection of the Cross are viewed in historical context, a very different picture may perhaps be discerned. The monument was dedicated on

³² Fredman & Falk 100–101.

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July 12, 1925, during a period when the country was experiencing heightened racial and religious animosity. Membership in the Ku Klux Klan, which preached hatred of Blacks, Catholics, and Jews, was at its height.³³ On August 8, 1925, just two weeks after the dedication of the Bladensburg Cross and less than 10 miles away, some 30,000 robed Klansmen marched down Pennsylvania Avenue in the Nation's Capital. But the Bladensburg Cross memorial included the names of both Black and White soldiers who had given their lives in the war; and despite the fact that Catholics and Baptists at that time were not exactly in the habit of participating together in ecumenical services, the ceremony dedicating the Cross began with an invocation by a Catholic priest and ended with a benediction by a Baptist pastor. App. 1559–1569, 1373. We can never know for certain what was in the minds of those responsible for the memorial, but in light of what we know about this ceremony, we can perhaps make out a picture of a community that, at least for the moment, was united by grief and patriotism and rose above the divisions of the day.

Finally, it is surely relevant that the monument commemorates the death of particular individuals. It is natural and appropriate for those seeking to honor the deceased to invoke the symbols that signify what death meant for those who are memorialized. In some circumstances, the exclusion of any such recognition would make a memorial incomplete. This well explains why Holocaust memorials invariably include Stars of David or other symbols of Judaism.³⁴

³³ Fryer & Levitt, *Hatred and Profits: Under the Hood of the Ku Klux Klan*, 127 Q. J. Econ. 1883 (2012).

³⁴ For example, the South Carolina Holocaust Memorial depicts a large Star of David “in sacred memory of the six million,” see <https://www.onecolumbiasc.com/public-art/south-carolina-holocaust-memorial/>, and the Philadelphia Monument to Six Million Jewish Martyrs depicts a burning bush, Torah scrolls, and a blazing menorah, see <https://www.associationforpublicart.org/artwork/monument-to-six-million-jewish-martyrs/>.

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It explains why a new memorial to Native American veterans in Washington, D. C., will portray a steel circle to represent “‘the hole in the sky where the creator lives.’”³⁵ And this is why the memorial for soldiers from the Bladensburg community features the cross—the same symbol that marks the graves of so many of their comrades near the battlefields where they fell.

IV

The cross is undoubtedly a Christian symbol, but that fact should not blind us to everything else that the Bladensburg Cross has come to represent. For some, that monument is a symbolic resting place for ancestors who never returned home. For others, it is a place for the community to gather and honor all veterans and their sacrifices for our Nation. For others still, it is a historical landmark. For many of these people, destroying or defacing the Cross that has stood undisturbed for nearly a century would not be neutral and would not further the ideals of respect and tolerance embodied in the First Amendment. For all these reasons, the Cross does not offend the Constitution.

* * *

We reverse the judgment of the Court of Appeals for the Fourth Circuit and remand the cases for further proceedings.

It is so ordered.

JUSTICE BREYER, with whom JUSTICE KAGAN joins, concurring.

I have long maintained that there is no single formula for resolving Establishment Clause challenges. See *Van Orden v. Perry*, 545 U. S. 677, 698 (2005) (opinion concurring in judgment). The Court must instead consider each case in light

³⁵ Hedgpeth, “A Very Deep Kind of Patriotism”: Memorial To Honor Native American Veterans Is Coming to the Mall, *Washington Post*, Mar. 31, 2019.

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of the basic purposes that the Religion Clauses were meant to serve: assuring religious liberty and tolerance for all, avoiding religiously based social conflict, and maintaining that separation of church and state that allows each to flourish in its “separate spher[e].” *Ibid.*; see also *Zelman v. Simmons-Harris*, 536 U. S. 639, 717–723 (2002) (BREYER, J., dissenting).

I agree with the Court that allowing the State of Maryland to display and maintain the Peace Cross poses no threat to those ends. The Court’s opinion eloquently explains why that is so: The Latin cross is uniquely associated with the fallen soldiers of World War I; the organizers of the Peace Cross acted with the undeniably secular motive of commemorating local soldiers; no evidence suggests that they sought to disparage or exclude any religious group; the secular values inscribed on the Cross and its place among other memorials strengthen its message of patriotism and commemoration; and, finally, the Cross has stood on the same land for 94 years, generating no controversy in the community until this lawsuit was filed. Nothing in the record suggests that the lack of public outcry “was due to a climate of intimidation.” *Van Orden*, 545 U. S., at 702 (BREYER, J., concurring in judgment). In light of all these circumstances, the Peace Cross cannot reasonably be understood as “a government effort to favor a particular religious sect” or to “promote religion over nonreligion.” *Ibid.* And, as the Court explains, ordering its removal or alteration at this late date would signal “a hostility toward religion that has no place in our Establishment Clause traditions.” *Id.*, at 704.

The case would be different, in my view, if there were evidence that the organizers had “deliberately disrespected” members of minority faiths or if the Cross had been erected only recently, rather than in the aftermath of World War I. See *ante*, at 64; see also *Van Orden*, 545 U. S., at 703 (opinion of BREYER, J.) (explaining that, in light of the greater religious diversity today, “a more contemporary state effort” to

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put up a religious display is “likely to prove divisive in a way that [a] longstanding, pre-existing monument [would] not”). But those are not the circumstances presented to us here, and I see no reason to order *this* cross torn down simply because *other* crosses would raise constitutional concerns.

Nor do I understand the Court’s opinion today to adopt a “history and tradition test” that would permit any newly constructed religious memorial on public land. See *post*, this page and 71 (KAVANAUGH, J., concurring); cf. *post*, at 85–87 (GORSUCH, J., concurring in judgment). The Court appropriately “looks to history for guidance,” *ante*, at 60 (plurality opinion), but it upholds the constitutionality of the Peace Cross only after considering its particular historical context and its long-held place in the community, see *ante*, at 63–66 (majority opinion). A newer memorial, erected under different circumstances, would not necessarily be permissible under this approach. Cf. *ante*, at 57.

As I have previously explained, “where the Establishment Clause is at issue,” the Court must “‘distinguish between real threat and mere shadow.’” *Van Orden*, 545 U. S., at 704 (opinion concurring in judgment) (quoting *School Dist. of Abington Township v. Schempp*, 374 U. S. 203, 308 (1963) (Goldberg, J., concurring)). In light of all the circumstances here, I agree with the Court that the Peace Cross poses no real threat to the values that the Establishment Clause serves.

JUSTICE KAVANAUGH, concurring.

I join the Court’s eloquent and persuasive opinion in full. I write separately to emphasize two points.

I

Consistent with the Court’s case law, the Court today applies a history and tradition test in examining and upholding the constitutionality of the Bladensburg Cross. See *Marsh v. Chambers*, 463 U. S. 783, 787–792, 795 (1983); *Van Orden*

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v. *Perry*, 545 U.S. 677, 686–690 (2005) (plurality opinion); *Town of Greece v. Galloway*, 572 U.S. 565, 575–578 (2014).

As this case again demonstrates, this Court no longer applies the old test articulated in *Lemon v. Kurtzman*, 403 U.S. 602 (1971). The *Lemon* test examined, among other things, whether the challenged government action had a primary effect of advancing or endorsing religion. If *Lemon* guided this Court’s understanding of the Establishment Clause, then many of the Court’s Establishment Clause cases over the last 48 years would have been decided differently, as I will explain.

The opinion identifies five relevant categories of Establishment Clause cases: (1) religious symbols on government property and religious speech at government events; (2) religious accommodations and exemptions from generally applicable laws; (3) government benefits and tax exemptions for religious organizations; (4) religious expression in public schools; and (5) regulation of private religious speech in public forums. See *ante*, at 51, n. 16.

The *Lemon* test does not explain the Court’s decisions in any of those five categories.

In the first category of cases, the Court has relied on history and tradition and upheld various religious symbols on government property and religious speech at government events. See, e.g., *Marsh*, 463 U.S., at 787–792, 795; *Van Orden*, 545 U.S., at 686–690 (plurality opinion); *Town of Greece*, 572 U.S., at 575–578. The Court does so again today. *Lemon* does not account for the results in these cases.

In the second category of cases, this Court has allowed legislative accommodations for religious activity and upheld legislatively granted religious exemptions from generally applicable laws. See, e.g., *Corporation of Presiding Bishop of Church of Jesus Christ of Latter-day Saints v. Amos*, 483 U.S. 327 (1987); *Cutter v. Wilkinson*, 544 U.S. 709 (2005). But accommodations and exemptions “by definition” have

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the effect of advancing or endorsing religion to some extent. *Amos*, 483 U. S., at 347 (O'Connor, J., concurring in judgment) (quotation altered). *Lemon*, fairly applied, does not justify those decisions.

In the third category of cases, the Court likewise has upheld government benefits and tax exemptions that go to religious organizations, even though those policies have the effect of advancing or endorsing religion. See, e. g., *Walz v. Tax Comm'n of City of New York*, 397 U. S. 664 (1970); *Muel-ler v. Allen*, 463 U. S. 388 (1983); *Mitchell v. Helms*, 530 U. S. 793 (2000) (plurality opinion); *Zelman v. Simmons-Harris*, 536 U. S. 639 (2002); *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U. S. 449 (2017). Those outcomes are not easily reconciled with *Lemon*.

In the fourth category of cases, the Court has proscribed government-sponsored prayer in public schools. The Court has done so not because of *Lemon*, but because the Court concluded that government-sponsored prayer in public schools posed a risk of coercion of students. The Court's most prominent modern case on that subject, *Lee v. Weis-man*, 505 U. S. 577 (1992), did not rely on *Lemon*. In short, *Lemon* was not necessary to the Court's decisions holding government-sponsored school prayers unconstitutional.

In the fifth category, the Court has allowed private religious speech in public forums on an equal basis with secular speech. See, e. g., *Lamb's Chapel v. Center Moriches Union Free School Dist.*, 508 U. S. 384 (1993); *Capitol Square Re-view and Advisory Bd. v. Pinette*, 515 U. S. 753 (1995); *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819 (1995); *Good News Club v. Milford Central School*, 533 U. S. 98 (2001). That practice does not violate the Estab-lishment Clause, the Court has ruled. *Lemon* does not ex-plain those cases.

Today, the Court declines to apply *Lemon* in a case in the religious symbols and religious speech category, just as the Court declined to apply *Lemon* in *Town of Greece v. Gallo-*

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way, *Van Orden v. Perry*, and *Marsh v. Chambers*. The Court's decision in this case again makes clear that the *Lemon* test does not apply to Establishment Clause cases in that category. And the Court's decisions over the span of several decades demonstrate that the *Lemon* test is not good law and does not apply to Establishment Clause cases in any of the five categories.

On the contrary, each category of Establishment Clause cases has its own principles based on history, tradition, and precedent. And the cases together lead to an overarching set of principles: If the challenged government practice is not coercive *and* if it (i) is rooted in history and tradition; or (ii) treats religious people, organizations, speech, or activity equally to comparable secular people, organizations, speech, or activity; or (iii) represents a permissible legislative accommodation or exemption from a generally applicable law, then there ordinarily is no Establishment Clause violation.*

The practice of displaying religious memorials, particularly religious war memorials, on public land is not coercive and is rooted in history and tradition. The Bladensburg Cross does not violate the Establishment Clause. Cf. *Town of Greece*, 572 U. S. 565.

II

The Bladensburg Cross commemorates soldiers who gave their lives for America in World War I. I agree with the Court that the Bladensburg Cross is constitutional. At the same time, I have deep respect for the plaintiffs' sincere objections to seeing the cross on public land. I have great respect for the Jewish war veterans who in an *amicus* brief say that the cross on public land sends a message of exclusion. I recognize their sense of distress and alienation. Moreover, I fully understand the deeply religious nature of

*That is not to say that challenged government actions outside that safe harbor are unconstitutional. Any such cases must be analyzed under the relevant Establishment Clause principles and precedents.

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the cross. It would demean both believers and nonbelievers to say that the cross is not religious, or not all that religious. A case like this is difficult because it represents a clash of genuine and important interests. Applying our precedents, we uphold the constitutionality of the cross. In doing so, it is appropriate to also restate this bedrock constitutional principle: All citizens are equally American, no matter what religion they are, or if they have no religion at all.

The conclusion that the cross does not violate the Establishment Clause does not necessarily mean that those who object to it have no other recourse. The Court's ruling *allows* the State to maintain the cross on public land. The Court's ruling does not *require* the State to maintain the cross on public land. The Maryland Legislature could enact new laws requiring removal of the cross or transfer of the land. The Maryland Governor or other state or local executive officers may have authority to do so under current Maryland law. And if not, the legislature could enact new laws to authorize such executive action. The Maryland Constitution, as interpreted by the Maryland Court of Appeals, may speak to this question. And if not, the people of Maryland can amend the State Constitution.

Those alternative avenues of relief illustrate a fundamental feature of our constitutional structure: This Court is not the *only* guardian of individual rights in America. This Court fiercely protects the individual rights secured by the U. S. Constitution. See, *e. g.*, *West Virginia Bd. of Ed. v. Barnette*, 319 U. S. 624 (1943); *Wisconsin v. Yoder*, 406 U. S. 205 (1972). But the Constitution sets a floor for the protection of individual rights. The constitutional floor is sturdy and often high, but it is a floor. Other federal, state, and local government entities generally possess authority to safeguard individual rights above and beyond the rights secured by the U. S. Constitution. See generally J. Sutton, 51 *Imperfect Solutions* (2018); Brennan, *State Constitutions and the Protection of Individual Rights*, 90 *Harv. L. Rev.* 489 (1977).